
Appeal Decision

Site visit made on 23 June 2026

by Chris Mayes CMLI

an Inspector appointed by the Secretary of State

Decision date: 09 September 2026

Appeal Ref: 6007219

Breckon Hill, Lowgate, Northumberland NE46 2NL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr D Parfitt against the decision of Northumberland County Council.
 - The application reference is 25/03689/FUL.
 - The development proposed is described as 'retrospective permission for the siting of an agricultural storage shed on land adjacent to Breckon Hill House'.
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Decision

1. The appeal is allowed and planning permission is granted for an agricultural storage shed on land adjacent to Breckon Hill House at Breckon Hill, Lowgate, Northumberland NE46 2NL in accordance with the terms of the application, reference 25/03689/FUL, subject to the following conditions:
 - 1) The development hereby permitted shall be retained in accordance with the following approved drawing nos.: 01001 Rev P1; 24-79-07 Rev A; and 24-79-06.
 - 2) Notwithstanding the provisions of the Town and Country Planning (General Permitted Development) (England) Order 2015 (or any Order that replaces or re-enacts that Order) (with or without modification) as they relate to the changes of use of agricultural buildings, the development hereby permitted shall only be used for agricultural purposes as defined by Section 336(1) of the Town and Country Planning Act 1990, and for no other purpose whatsoever.

Preliminary Matters

2. Since the appeal was lodged the National Planning Policy Framework (the Framework) has been updated. I am satisfied that the changes to the Framework do not alter the substance of the main issues in this appeal or prejudice either party.
3. The evidence indicates that the development was completed prior to the end of 2022. I saw during my site visit that the building has been erected and is being used for storage. This appears to accord with the plans before me. I have therefore considered the appeal on the basis that the development has already taken place, as did the Council.

Main Issues

4. The main issues are:

- whether the appeal development is inappropriate development in the Green Belt having regard to the National Planning Policy Framework (the Framework) and relevant development plan policies, including any relevant effects on the openness of the Green Belt;
- whether the appeal development represents an acceptable form of development in the open countryside;
- the effect of the appeal development on the character and appearance of the area; and,
- whether the harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Whether Inappropriate Development and Openness

5. The appeal site lies within the Green Belt, where the essential characteristics are its openness and permanence. Policy GB7 of the Framework sets out that development is inappropriate unless it falls within a number of listed exceptions, including buildings for agriculture.
6. The building subject to this appeal is described as an agricultural storage shed. The evidence before me, including what I saw at my site visit indicates that it is located on agricultural land, used in connection with nearby agricultural land and for the storage of a tractor, livestock feed, fencing materials and other equipment associated with the management of that land. The appellant has also provided evidence of livestock activity on the holding and sheep were present on the relevant land at the time of my visit.
7. The Council's principal concern is that, at the time of the application, the holding did not comprise an established agricultural enterprise and that agricultural activity was intended to develop further in the future. However, Policy GB7 of the Framework refers to buildings for agriculture. It does not require that such buildings serve an established agricultural business or enterprise. In this case, I have been presented with no substantive evidence to indicate that the building is used for any purpose other than that described by the appellant. Furthermore, the sole agricultural use of the building could be secured through a planning condition.
8. Although the scale of the agricultural activity appears modest and the building may not occupy the most functionally efficient location, those matters do not alter my finding that the building serves an agricultural purpose associated with the adjoining land. I therefore find that it constitutes a building for agriculture within the meaning of Policy GB7 of the Framework.
9. For these reasons, I conclude that the appeal development does not amount to inappropriate development in the Green Belt. Consequently, no conflict arises with Policy STP8 of the Northumberland Local Plan 2016-2036 (March 2022) (LP) which supports development that is not inappropriate in the Green Belt as defined in

national planning policy. The appeal development also accords with Policy HNP1 of the Hexham Neighbourhood Plan 2020-2036 (July 2021) (HNP), which provides that development within the Green Belt should be determined in accordance with national Green Belt policy.

10. Given my findings that the appeal development is not inappropriate development, by definition it does not have an adverse impact on the openness of the Green Belt or the purposes of including land within it. Moreover, as the appeal development does not amount to inappropriate development, there is no requirement to assess if there are other considerations that amount to very special circumstances needed to justify the development.

Development in the Open Countryside

11. The appeal site also lies within the open countryside. Policy STP1 of the LP seeks to restrict development in such locations unless it satisfies one of several specified exceptions. These include, under criteria g(i) and g(ii), development which supports sustainable growth and expansion of existing business or the formation of new businesses in accordance with Policy ECN13 and diversification of agricultural and other land-based rural businesses in accordance with Policy ECN14.
12. For the reasons set out above, I have found that the appeal development comprises a building for agriculture serving the adjoining agricultural land. The Council argues that there is not an established agricultural business on the land and thus the appeal development would not gain support under either Policy ECN13 or ECN14.
13. While the agricultural activity appears relatively modest in scale, the evidence before me indicates that the building is used in connection with that activity and there is no substantive evidence that it serves any alternative purpose. Even so, I acknowledge that the nature of the development does not fit squarely within the criteria of either Policy ECN13 relating to employment or ECN14 relating to farm diversification.
14. Nevertheless, Policy STP1(h) states that other forms of development in the open countryside, other than those identified in criterion (g), will be permitted if they are supported in a made neighbourhood plan. As I have found that the proposal constitutes development that is not inappropriate in the Green Belt, it accords with Policy HNP1 of the HNP. Consequently, it is a form of development supported by a made neighbourhood plan for the purposes of criterion (h) of Policy STP1.

Character and Appearance

15. The appeal site lies within a pastoral landscape characterised by undulating landform and a pattern of rectilinear fields enclosed by hedgerows, trees and occasional field trees. The landscape is intersected by a small, wooded valley between Allendale Road and Breckon Hill. While predominantly rural in character, the landscape is influenced by several dispersed building groups and associated domestic and agricultural development.
16. Against that backdrop, the building is modest in scale and height and, while located on agricultural land, is experienced in the context of the existing group of buildings. Furthermore, the intervening landform, existing vegetation and additional planting around the site substantially limit its visibility from the surrounding area.

Consequently, the building does not appear visually prominent, nor does it materially alter the established pattern of development within the landscape or the character of the wider landscape.

17. Taking these matters together, the appeal development does not result in harm to the character and appearance of the area. Accordingly, I conclude that the appeal development does not conflict with Policies QOP1, QOP2, QOP4, ENV1, ENV3 and ENV4 of the LP, which seek among other things, to ensure development responds positively to local character, integrates appropriately with its surroundings and conserves important elements of landscape character and rural tranquillity. Likewise, the appeal development accords with Policy HNP2 of the HNP, which requires development to respond positively to local character through its scale, massing and landscaping.

Other Matters

18. Reference has also been made to the effect of the appeal development on the setting of the nearby listed Breckon Hill Farmhouse (Listed Building No. 1042635). Based on the evidence before me the significance of the listed building lies in its age and architectural composition and detailing. Having regard to intervening boundaries and vegetation, and the separation between the appeal site and that asset, I have no reason to conclude that the appeal development results in harm to its significance through effects on its setting. This matter therefore weighs neither for nor against the appeal development.
19. The evidence before me raises some question as to whether the building could have been located elsewhere, including within the curtilage of the host property or in closer proximity to the agricultural land it serves. However, I have assessed the appeal development on the basis of its siting as submitted and, for the reasons given above, I have found that its location does not result in material harm. This matter therefore does not alter my overall conclusions.

Conditions

20. I have considered the conditions suggested by the Council having regard to the Planning Practice Guidance and the tests set out in the Framework. In addition to a condition identifying the approved plans, it is necessary to impose a condition restricting the use of the building to agricultural purposes. I have amended the legislative reference to the Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended), as this is the means by which a potential change of use could otherwise be affected.

Conclusion

21. For the reasons given above the appeal development accords with the development plan when read as a whole and I have not identified any conflict with the national decision-making policies of the Framework. Therefore, there are no material considerations which indicate that a decision should be made otherwise. Accordingly, the appeal should be allowed.

Chris Mayes

INSPECTOR